

SENATE BILL 1197

By Jackson

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 24, relative to compensation of county
officials.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-24-102(d), is amended by
designating the existing language as subdivision (d)(1) and adding the following as a new
subdivision (d)(2):

(2)

(A) If the department of economic and community development
determines that during the previous fiscal year a county experienced substantial
characteristics of economic distress, then that county may, by resolution of the
county legislative body, forgo the increase in compensation provided in
subdivision (d)(1).

(B) The minimum compensation for county officials in a county that
chose not to increase the minimum compensation under subdivision (d)(2)(A) is
increased to the level it would have been if not for the resolution when:

(i) The department of economic and community development
determines that the county is no longer experiencing substantial
characteristics of economic distress; or

(ii) County officials take office following the next county election
after the resolution was adopted.

(C) The department of economic and community development shall
make the determination of each county's level of economic distress no later than

July 1 of each year based upon unemployment, per capita income, and poverty levels of all Tennessee counties using statistical data prepared by any agency of the state or federal government.

(D) As used in this subdivision (d)(2), "substantial characteristics of economic distress" includes, but is not limited to, major loss of employment, recent high unemployment rates, traditionally low levels of family incomes, high levels of poverty, and high concentrations of employment in declining industries.

SECTION 2. For purposes of determining which counties are experiencing economic distress, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.